

BEFORE THE
FEDERAL MARITIME COMMISSION

DOCKET NO. 25-04

CHINA UNITED LINES, LTD,
COMPLAINANT,

v.

AMAZON.COM SERVICES LLC

and

AMAZON LOGISTICS INC.

and

BEIJING CENTURY JOYO COURIER SERVICE CO., LTD.

RESPONDENTS.

**COMPLAINANT CHINA UNITED LINES, LTD.'S
MOTION TO COMPEL CORPORATE TESTIMONY FROM RESPONDENTS**

I. INTRODUCTION

Complainant China United Lines, Ltd. (“China United”), by and through its undersigned counsel, hereby moves to compel corporate testimony in response to its Rule 143(b)(6) Notice of Corporate Deposition Topics (the “Topics”) Nos. 2-4, 8-10, 14, 17, and 19, propounded upon Respondents Amazon.com Services LLC, Amazon.com Logistics, Inc., and Beijing Century Joyo Courier Services Co., Ltd., (“Respondents” or “Amazon”). This Motion to Compel (the “Motion”) sets forth: (1) China United’s efforts to confer in good faith and obviate the necessity of this Motion, (2) copies of the Corporate Deposition Topics, (3) Amazon’s responses thereto, and (4) supporting arguments and a request for relief as required by 46 C.F.R. § 502.150. This Motion is supported by the Declaration of Bryce M. Cullinane (“Cullinane Decl.”) and the exhibits attached thereto.

China United’s allegations in this proceeding center around Amazon’s unjust and deceitful conduct—the key ingredient in a 46 U.S.C. § 41102(a) claim. Specifically, China United alleges that Amazon converted its termination of the parties’ Service Contract from “for convenience” to “for cause” pretextually—to avoid paying the liquidated damages it agreed to pay China United for failing to provide the MQC, and to avoid paying China United’s rates it no longer deemed favorable—not out of any genuine concern over China United’s use of Amazon’s name (after Amazon *itself* publicized its relationship with China United Lines). In addition, Amazon kept its objections regarding China United’s use of Amazon’s name in an October 2022 banner to itself, holding China United’s alleged breach in its back-pocket, for later usage to its advantage (all the while China United relied to its detriment upon Amazon). Yet Amazon refuses to provide corporate testimony regarding these pivotal issues. Indeed, Amazon refuses to provide testimony regarding Topics 2-4, 8-10, 14, 17, and 19, based on its own belief that such testimony has no

bearing on the claims or defenses in this proceeding. Amazon is wrong. These Topics seek testimony regarding Amazon's publication of the parties' relationship (which occurred *before* China United did so), Amazon's practices and policies relating to use of its name and marketing carrier relationships, and whether Amazon has terminated for cause any other carrier relationship(s) for using Amazon's name in the way China United did. Each of these Topics bear directly on whether Amazon's ultimate decision to terminate for cause was based on a genuine concern for the use of its name, or an unfair and unjust device used to escape Amazon's commitments in the Service Contract. Amazon has interposed its own theory of the merits of this proceeding above the applicable thresholds for discovery in Commission proceedings, depriving China United of relevant discovery. Having raised these issues with Amazon's counsel on January 16 and 19, 2026 (*see* Cullinane Decl., ¶¶ 5-7, Exs. C-E), and cognizant of the close of fact discovery and depositions, China United now brings this Motion and requests that it be granted.

II. LEGAL STANDARD

The Commission's Rules entitle parties to discovery "regarding any nonprivileged matter that is relevant to any party's claim or defense—including the existence, description, nature, custody, condition, and location of any documents or other tangible things and the identity and location of persons who know of any discoverable matter." 46 C.F.R. § 502.141(e)(1). These guidelines apply with equal thrust to corporate depositions, which impose an affirmative obligation on the corporation to designate a witness to testify on its behalf. *See* 46 C.F.R. § 502.143(b)(6). As part of this obligation, the corporation must prepare its witness to testify regarding matters not only known to the deponent but also reasonably known to the corporation. *Visual Comfort & Co. v. COSCO Shipping Lines Co., Ltd.*, FMC Dkt. No. 24-01, Dkt. 87 at 5 (ALJ Jan. 24, 2025) (granting motion to compel in part). If the corporation fails to do so, or the designated witness fails

to answer a question asked during deposition, the Presiding Officer may order the corporation to provide a response. 46 C.F.R. § 502.150(a)(1).

“A litigant cannot limit its discovery so as to ascribe unto itself the role of judge and jury.” *Novelty, Inc. v. Mountain View Mktg., Inc.*, 265 F.R.D. 370, 378 (S.D. Ind. 2009). Nor may a corporation designate a witness to testify “with only selected information to offer and describe that information as the only relevant information available.” *Buycks-Roberson v. Citibank Fed. Sav. Bank*, 162 F.R.D. 338, 343 (N.D. Ill. 1995). As Commission precedent makes clear, a respondent “cannot limit its discovery to what it believes are the core issues in this proceeding nor can it require [the complainant] to produce evidence that claims are valid before producing discovery.” *MCS Indus., Inc. v. COSCO Shipping Lines Co., Ltd. & MSC Mediterranean Shipping Co. SA*, FMC Dkt. No. 21-05, 2021 WL 5908366, at *3–4 (FMC ALJ Dec. 8, 2021) (granting motion to compel).

III. ARGUMENT

A. Amazon’s Privilege and Undue Burden Objections are Without Merit

As an initial matter, Amazon’s privilege and undue burden objections are unsubstantiated boilerplate objections which deserve no countenance by the Presiding Officer. Amazon objected to Topics 2, 4, 9, 10, 14, 17, and 19, using the same language:

Respondents . . . object to this Topic to the extent it seeks testimony protected by the attorney-client privilege, work product doctrine, and/or any applicable privilege or protection.

Cullinane Decl., Ex. B.

“It is the longstanding practice in federal court that boilerplate objections and unsupported privilege assertions, including assertions of the attorney-client privilege, the work product doctrine, etc., are improper.” *Bragel International, Inc. v. Kohl's Department Stores*, Case No. CV

17-7414 RGK (SSx), 2018 WL 7890682, at *5 (C.D. Cal. Nov. 14, 2018). “Instead, the objecting party must show specifically how, despite the broad and liberal construction afforded the federal discovery rules, each request is not relevant or how each question is overly broad, burdensome or oppressive by submitting affidavits or offering evidence revealing the nature of the burden.” *Fracasse v. People's United Bank*, Civ. No. 3:12CV670 (JCH) 2013 WL 6017332, at *2 (D. Conn. Nov. 13, 2013) (internal quotation marks omitted). Amazon has not shown, with respect to any of the testimony sought by China United, how the privileges identified in its responses are implicated, nor has Amazon provided a privilege log to substantiate its claims. Accordingly, Amazon’s privilege objections have no merit.

Similarly, with respect to Topics 8 and 14, Amazon stated:

The relative burden of preparing a corporate deponent on a topic so attenuated from any claim or defense in either case vastly outweighs any minimal relevance such testimony might have.

Cullinane Decl., Ex. B.

“The discovery process necessarily imposes burdens on a responding party.” *Cartel Asset Mgmt. v. Ocwen Fin. Corp.*, No. 01-CV-01644-REB-CBS, 2010 WL 502721, at *15 (D. Colo. Feb. 8, 2010). “The question, however, is whether the discovery unduly burdens....” *Schwartz v. Unified School District No. 512*, 1996 WL 741384, at *2 (D.Kan. 1996). As such, the party resisting discovery must *specifically show* how the requested discovery is overly broad, unduly burdensome or oppressive by offering evidence revealing the nature of the burden. *Merrill v. Waffle House, Inc.*, 227 F.R.D. 475, 478 (N.D.Tex. 2005). Amazon has failed to do so for any of the testimony sought by China United, and its undue burden objections should thus be rejected.

B. China United is Entitled to Testimony Regarding Amazon’s Name-Related Marketing (Topic Nos. 2-4, 14, 17, 19)

1. Amazon's Practices & Policies Related to the Use of its Name go to the Heart of the Issue (Topics Nos. 2, 3, 17)

China United originally noticed Topic No. 2 as:

Amazon's policies, practices, procedures, and decision making process related to monitoring and enforcing the use of its trade name and/or violations of confidentiality and/or publicity provisions contained in its various contracts.

Cullinane Decl., Ex. A. China United originally noticed Topic No. 3 as:

Amazon's policies, practices, procedures, and decision making process related to granting permission to business partners to use its trade name.

Cullinane Decl., Ex. A. And China United originally noticed Topic No. 17 as:

Amazon's marketing practices, including but not limited to whether Amazon routinely shares the names of its business partners subject to confidentiality provisions similar to those at issue in this dispute.

Cullinane Decl., Ex. A.

Amazon refused to designate a representative to testify on Topics 2, 3, and 17, arguing that the topics seek irrelevant information. *See* Cullinane Decl., Ex. B, Amazon's Responses to Topics 2, 3, 17. China United explained the topics' relevance in subsequent correspondence and even offered to narrow the testimony sought, in the spirit of compromise. Cullinane Decl., Ex. C. Amazon still refused to provide the requested testimony. Cullinane Decl., Ex. D. Amazon asserted that the topics "reach[] Amazon's dealings with third parties," which, "remain irrelevant to the claims and defenses in either the FMC or SDNY actions." Cullinane Decl., Ex. D. This position is wrong, for two reasons.

First, Amazon's practices and policies related to the use and monitoring of its name, its policies and procedures related to granting permission to use its name, and its policies and

procedures related to sharing its business partners' names are plainly relevant to China United's 46 U.S.C. § 41102(a) claim. A section 41102(a) claim involves three elements: (1) knowing and willful conduct; (2) through which, either "directly or indirectly," by means of the actions enumerated in the statute or through "any other unjust or unfair device or means;" (3) respondent obtained or attempted to obtain ocean transportation at lesser rates. *Muhammad Rana v. Michelle Franklin D.B.A. "The Right Move," Inc.*, Dkt. No. 19-03, 2022 WL 1744905, at *7 (FMC May 25, 2022). "[F]raud or concealment is a necessary ingredient in the proof of an unjust or unfair device or means . . . It is such fraud or concealment that in fact makes the practice unjust or unfair." *United States v. Open Bulk Containers*, 727 F.2d 1061, 1064 (11th Cir. 1984) (citations omitted). Here, China United alleges that Amazon's decision to convert its termination of the parties' Service Contract from "for convenience" to "for cause" sounded in fraud because it was pretextual, amongst other things. FAC ¶ 43. The evidence produced in this case already shows that Amazon was not motivated to terminate "for cause" out of any genuine concern about the confidentiality of the parties' relationship, but rather to avoid paying China United the liquidated damages it owed for terminating the Service Contract early. For example, Amazon's corporate representative, David Cardadeiro, testified that Amazon terminated the Service Contract "for cause" because China United publicized the parties' relationship. Yet, Amazon publicized the parties' relationship first (more than a month prior to China United) and waited nearly a year after China United's WeChat post referencing the same to terminate "for cause" (at a time when market rates happened to fall to below the rates Amazon agreed to pay China United). Topics 2, 3, and 17 substantiate this same point. Whether Amazon monitors the use of its name, whether Amazon allows other business partners to use its name and under what circumstances, and whether Amazon has publicized its relationship with other business partners like China United (with or without later terminating those

relationships for cause) bear directly on whether Amazon acted deceitfully in invoking the termination “for cause” here, and thus utilized an unfair or unjust means within the meaning of Section 41102(a).

Second, to the extent Amazon’s objections are premised upon its beliefs regarding the merits of this proceeding, such a position is wholly improper in the context of a discovery dispute on corporate testimony. “A party cannot refuse to engage in—and is not excused from being subjected to—discovery simply because the discovery is relevant to a claim on which the resisting party believes that he will or should prevail.” *Third Pentacle, LLC v. Interactive Life Forms, LLC*, No. 3:10cv00238, 2012 WL 27473, at *3 (S.D. Ohio Jan. 5, 2012) (even if a party “presently holds a strong belief in the merits of [the party’s] litigation positions, [the party’s] strong belief—whether ultimately justified or not—provides no basis for avoiding [the party’s] discovery obligations created by the Federal Rules of Civil Procedure”). Accordingly, China United respectfully requests that Amazon be compelled to produce a corporate representative to testify on Topics 2, 3, and 17, as originally-noticed.

2. *Amazon’s Refusal to Provide Testimony Related to its Decision to Publicize the Parties’ Relationship is Improper (Topics Nos. 4, 14, 19)*

China United originally noticed Topic No. 4 as:

Amazon’s policies, practices, procedures, and decision making process related to its use of WeChat.

Cullinane Decl., Ex. A. China United originally noticed Topic No. 14 as:

All of Amazon’s references to or mentions of CUL in any public forum or disclosures to third parties.

Cullinane Decl., Ex. A. And China United originally noticed Topic No. 19 as:

The reach of Amazon’s WeChat account that posted the July 4, 2022 WeChat post (CUL001228)

Cullinane Decl., Ex. A.

Amazon again refused to provide a corporate representative to testify regarding Topics 4, 14, and 19, objecting, as above, that the testimony was irrelevant to the claims or defenses in this proceeding. *See* Cullinane Decl., Ex. B, Amazon’s Responses to Topics 4, 14, 19. With respect to Topics 4 and 14, Amazon further asserted that the testimony was duplicative of documents already produced. *See id.* Over the course of subsequent discussion between the parties, China United explained the relevance of the testimony sought, and offered to narrow Topic 4 to pertain only to the July 4, 2022 WeChat post made by Amazon regarding China United. Cullinane Decl., Ex. C. In an attempt to avoid filing the instant Motion, China United further offered to forego Topic 19, if Amazon would provide the WeChat followers it maintained on the date it publicized the China United/Amazon relationship and the number of people who viewed its WeChat posting publicizing the parties’ relationship. *Id.* Amazon refused each of these offers, asserting instead that the testimony sought should be addressed by written discovery. Cullinane Decl., Ex. D. This is an improper response. As the propounding party, China United (not Amazon) has the option on the means of conducting discovery. *See Nat’l Life Ins. Co. v. Hartford Acci. & Indem. Co.*, 615 F.2d 595, 599-600 n.5 (3d Cir. 1980). Federal caselaw on this point is clear: “Producing documents and responding to written discovery is not a substitute for providing a thoroughly educated Rule 30(b)(6) deponent.” *Great Am. Ins. Co. of N.Y. v. Vegas Constr. Co.*, 251 F.R.D. 534, 541 (D. Nev. 2008) (stating “the two forms of discovery are not equivalent”); *James Lee Constr., Inc. v. Gov’t Emples Ins. Co.*, 339 F.R.D. 562, 569 (D. Mont. 2021) (stating document discovery does not prohibit Rule 30(b)(6) deposition); *Murphy v. Kmart*, 255 F.R.D. 497, 507 (D.S.D. 2009) (stating “producing documents and responding to written discovery is not a substitute for providing” a Rule 30(b)(6) witness).

Corporate testimony offers a more complete means to obtain information than written discovery, and **China United is entitled to testimony regarding Amazon's decision to publicize its relationship with China United**, including by WeChat, alongside Amazon's practices and policies related to WeChat use. Topics 4, 14, and 19 address why Amazon chose to publicize the parties' relationship and the extent of publicization Amazon engaged in prior to and after China United's WeChat post. The extent and reasons for publicization by Amazon are plainly relevant to United's Section 41102(a), since Amazon alleges China United disclosed confidential information when it posted the parties' relationship to WeChat, and China United alleges this contention is disingenuous and deceitful. Testimony borne out in response to these Topics will address how public (and thus not confidential) the parties' relationship was prior to China United's WeChat post, whether Amazon was motivated to gain financially by publicizing the parties' relationship (and thus was not damaged by China United's subsequent WeChat post), and ultimately whether Amazon's decision to terminate "for cause" was an unfair or unjust device within the meaning of Section 41102(a). Accordingly, China United respectfully requests that Amazon be compelled to produce a corporate representative to testify regarding Topics 4, 14, and 19 as originally-noticed.

C. China United is Entitled To Testimony Regarding Similar Service Contracts Amazon Entered Into, Which Amazon did *not* Terminate When its Name was Used (Topic Nos. 8-10)

China United originally noticed Topic No. 8 as:

Amazon's negotiation of other similar Service Contracts (to the subject Service Contract), including but not limited to the NDA and the Confidentiality and/or Publicity Provisions contained in the Work Order and MTA, the MQC, and the termination provisions.

Cullinane Decl., Ex. A. China United originally noticed Topic No. 9 as:

All other instances during the two-year period of January 2022-December 2023 where Amazon terminated an agreement, for cause or otherwise, with another vendor/business partner for unauthorized use of its name in violation of a Confidentiality and/or Publicity Provisions.

Cullinane Decl., Ex. A. And China United originally noticed Topic No. 10 as:

All other vendor relationships in which Amazon became aware of the unauthorized use of its name by the vendor/business partner but did not terminate that vendor's/business partner's agreement for cause.

Cullinane Decl., Ex. A.

Amazon refused to appoint a corporate representative to testify on Topics 8-10, arguing (again) that the testimony sought was irrelevant to the claims and defenses in this proceeding. Cullinane Decl., Ex. B, Amazon's Responses to Topics 8-10. In response, and in an attempt to reach a compromise with Amazon, China United stated that if Amazon would stipulate that all ocean carriers signed the same Service Contract as China United, China United would forgo Topic 8. Cullinane Decl., Ex. C. Similarly, China United stated that if Amazon would stipulate that it had not terminated any vendor or partner for cause for use of its name, then it would forgo topic 9. And China United offered to narrow Topic 10, to pertain only to the years 2020 to the present. *Id.* Amazon refused to produce a representative to testify or to stipulate. Cullinane Decl., Ex. D. China United is entitled to the testimony sought by Topics 8-10.

Evidence in this proceeding has already revealed that **at least one carrier used by Amazon (ZIM) published its relationship with Amazon online, in a manner much like China United did, without written permission from Amazon, and yet ZIM was not terminated by Amazon.** China United is entitled to testimony regarding whether any other carriers signed the same Service Contract as China United, and whether Amazon ultimately terminated its relationship with those carriers for publicizing their relationship with Amazon. "Evidence of a part[y]'s actions

under identical provisions in other contracts is relevant to aid in the interpretation of a contract because it shows course of conduct.” *Warner Bros., Inc. v. Curtis Mgmt. Grp., Inc.*, No CV 91-4016-WMB 1995 WL 420043, at *12 (C.D.Cal. Mar. 31, 1993) (citing *Whittaker Corp. v. Execuair Corp.*, 736 F.2d 1341, 1347 (9th Cir. 1984); *see also* McCormick on Evid. § 198 (2025) (“[I]t seems clear that contracts of a party with third persons may show the party’s customary practice and course of dealing and thus supply useful insights into the terms of the present agreement. Indeed, even if there are but one or two such contracts, they may be useful evidence.”) Here, this testimony bears directly on China United’s allegations in the Amended Complaint—that Amazon only invoked the termination “for cause” against China United Lines because it sought to avoid paying the rates it agreed to provide China United for the MQC in contract years 1 and 2—not because of any genuine concern about the use of its name. FAC ¶ 46. If Amazon allows other carriers to use its name without consequence because their rates are favorable to Amazon, but punishes carriers like China United when their rates are high, Amazon’s conduct tends to manifest as an unfair or unjust device within the meaning of Section 41102(a) to access lower-than-market rates on ocean freight. Such conduct severely undermines the shipping industry. Accordingly, China United respectfully requests that Amazon be compelled to produce a representative to testify to Topics 8-10, as originally-noticed

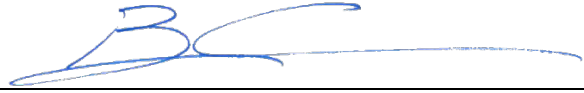
IV. CONCLUSION

For the reasons stated above, China United Lines, Ltd. respectfully requests that the Presiding Officer compel Amazon to produce a corporate representative to testify regarding Topics 2-4, 8-10, 14, 17, and 19.

Dated: February 1, 2026

Respectfully submitted,

THEODORA ORINGHER PC



BRYCE M. CULLINANE

CASB No. 307079

bcullinane@tocounsel.com

535 Anton Boulevard, Ninth Floor Costa Mesa,

California 92626-7109

Telephone: (714) 549-6200

Facsimile: (714) 549-6201

Attorneys for Claimant

China United Lines, Ltd.

PROOF OF SERVICE

I, David P. Collins, hereby certify that on this 1st day of February, 2026, a copy of the foregoing **Motion to Compel Corporate Testimony from Respondents** was served via email, on the following:

Michael F. Scanlon
John Longstreth
Christiana K. Goff
K&L GATES LLP
1601 K Street, N.W.
Washington, DC 20006
(202) 778-9000
(202) 778-9100 (fax)
michael.scanlon@klgates.com
john.longstreth@klgates.com
christi.goff@klgates.com

Counsel for Respondents



David P. Collins